

**Application for a Drawing
Under a UKEF Facility Line
for
The Bond Support Scheme (BSS)
Or
Export Working Capital Scheme
(EWCS)

(Where a Facility Letter
has been issued)**

EXPORTERS SHOULD NOT SEND THIS APPLICATION DIRECTLY TO UKEF ALL APPLICATIONS
MUST BE SUBMITTED BY A PARTICIPATING BANK VIA TFIS.UNDERWRITING@UKEF.GSI.GOV.UK

Purpose of this form

This form is for use where:

- the Export Credits Guarantee Department operating as UK Export Finance ("UKEF" has provided a facility letter to an exporter' bank under which UKEF has committed to issue guarantees to the exporter' bank to enable the bank:
 - (1) to issue bonds at the request of the exporter which are required under export contracts which the exporter has entered into with specific purchasers outside the UK; and
 - (2) to make working capital facilities available to an exporter to enable the exporter to supply goods or services under export contracts with specific purchasers outside the United Kingdom;
- the exporter has entered into, or intends to enter into and export contract with one of those purchasers;
- the exporter wishes UKEF to issue a guarantee to its bank in respect of a working capital facility to be provided, or bonds to be issued, in relation to that export contract; and

The guarantees to be issued by UKEF will protect the bank against the exporter (1) failing to reimburse the bank in respect of any payment which the bank makes in response to a demand under any of the bonds or, as the case may be, (2) failing to repay the relevant working capital facility

UKEF will rely on the information in this form (when completed) when deciding whether to give provide the requested guarantee(s).

Completing and submitting this form

This form may be completed either in hard copy or electronically. In either case, the completed form should be signed on behalf of the exporter by a duly authorised signatory and sent to the bank which is providing the working capital facility or, as the case may be, arranging the issue of the contract bonds so that the bank may complete the remainder of the form, sign it and submit it to UKEF. If this form is sent to the bank electronically, the Exporter' signatory should sign the form by typing his name into the appropriate space in signature block.

Before sending this form to the bank, the exporter should make and retain a copy of it so that the exporter has a record of the undertakings given to UKEF in sections 9 to 12 of this application and its obligation under those undertakings.

Corruption and Money Laundering

Please note that the OECD countries, including the United Kingdom, are committed to combating corruption and money laundering. The law in the UK has been strengthened in order to do so. Whilst the Exporter is responsible for ensuring that its activities comply with all laws that are relevant to the Export Contract, UKEF draws the Exporter' attention, in particular, to the applicable law on corruption contained in the Bribery Act 2010 and to the applicable law on money laundering contained in Part 7 of the Proceeds of Crime Act 2002.

Certain acts committed abroad may constitute criminal offences in the UK. The Exporter should also be aware that UKEF routinely refers allegations of bribery and corruption and money laundering to the appropriate authorities.

1 Exporter' details

Full corporate name	
Company registration number	
Date of current Exporter's Questionnaire	
Date of Facility Application (as defined in section 9.1 of this form):	



2 Export contract

Buyer: <i>(the Buyer must be a Nominated Buyer as defined in section 9.1 of this Application)</i>	Name: Address:
Who are the parties to the export contract:	Exporter ☐ Yes ☐ No Buyer ☐ Yes ☐ No Others ☐ Yes ☐ No If yes, name any other party below:
Date of export contract:	
Goods/services to be supplied:	
Country to which goods/services to be delivered:	
Total amount payable by the Buyer under the Export Contract (excl. tax)	
What is the cost to the Exporter of purchasing goods/ services from sub-suppliers for the purpose of the Export Contract?	
If any goods and/or services are being supplied by companies outside the UK, please state the cost to you of purchasing them (in currency of Export Contract)	



3 Payment of contract price

Please insert details of the stages/instalments in which amounts are payable under the Export Contract. Dates may be expressed in months/weeks after the start of contract or by reference to stages of the Export Contract (but, in such cases, estimated dates should be given). Amounts may be expressed as absolute amounts or as percentages of the contract price

Date for Payment	Amount

4 Agents

(a) Was an Agent (as defined in section 9.1 of this Application) engaged by the Exporter to assist in seeking the award of, or negotiating, the Export Contract?	☐ Yes (Go to (b)) ☐ No (Go to 5)
(b) Was that Agent the Nominated Agent (as defined in section 9.1 of this Application)?	☐ Yes (Go to(c)) ☐ No (Give details below)
Name: Address: Amount of commission: Place where commission paid:	
(c) Was the Nominated agent engaged on the same terms (including as to remuneration and services provided) as specified in the Facility Application (as defined in section 9.1 of this Application)?	☐ Yes (Go to 5) ☐ No (Give details of any differences below)

5 Consortium partners

(a) Will the Exporter perform the Export Contracts as part of a consortium or joint venture?	☐ Yes (Go to (b)) ☐ No (Go to 6)
(b) Name and address of each Consortium Partner(as defined in paragraph 9.1 of this Application)and the work it will perform in the performance of the export contracts	



6 Involved group companies

(a) Will any Group Company (as defined in paragraph 9.1 of this application) be involved in obtaining or negotiating the Export Contracts?	☐ Yes (Go to (b)) ☐ No (Go to 7)
(b) Name and address of each involved Group Company	

7 Required bonds

Is a guarantee from UKEF required by the exporter's bank in respect of any bonds to be issued pursuant to the Export Contract?	☐ Yes (Complete table below) ☐ No (Go to section 8)
--	--

Type	Maximum Value (in the currency of the Bond)	Bond's Estimated Issue Date	Bond's Estimated Expiry Date	Guarantee Expiry Date



8 Required working capital facility

Is a guarantee from UKEF required by the exporter's bank in respect of any working capital facility to be provided to assist the exporter to perform the Export Contract	☐ Yes (Complete table below) ☐ No (Go to section 7)
Currency:	
Amount:	
Term:	



9 Exporter's anti-corruption undertaking

9.1 Definitions

In this Application (and in addition to the expressions defined in sections 1 to 4 above):

"Agent" means any agent, intermediary, consultant or other person:

- (1) who has been instructed by, or on behalf of, the Exporter; and
- (2) who has been directly or indirectly involved in the process of tendering for, or seeking the award of, the Export Contract or any Related Agreement;

"Buyer" means the buyer under the Export Contract as identified in section 2 of this Application form;

"Confidential Information" means (1) the Contract Records, (2) the contents of the Contract Records and (3) all written or oral explanations provided in respect of the Contract Records pursuant to paragraph 7.3.6 below;

"Consortium Partner" means any company (other than the Exporter), person or other legal entity which is a party to any written joint venture, consortium, or other similar arrangement (other than a sub-contract) to which the Exporter is also a party and which joint venture, consortium or other arrangement has been, or will be, entered into in connection with the performance or financing of the Export Contract or any part of it;

"Contract Records" means any records, other than those covered by legal privilege, preserved in any medium or form including records stored electronically which relate (1) specifically to the Exporter's obtaining of the Export Contract or the employment of, and payments to or for the benefit of, any Agents and (2) only to the period up to the date of award of the Export Contract;

"control" and **"controlled"** means, in relation to a company (the "company controlled", control of the company controlled (1) by virtue of any contractual arrangements including, without limitation, any provisions in the memorandum and articles of association (or the equivalent documents in the case of a company incorporated in a jurisdiction other than that of England and Wales) of the company controlled or any other company and/or (2) by virtue of ownership (whether directly or through nominees or trustees) of more than 50% of the voting share capital of the company controlled or (3) through a chain of companies each of which controls the next by the means described at (1) and/or (2) above;

"Corrupt Activity" means any activity (including without limitation, the offering of any payment, reward or other advantage to any public official or other person) which:

- (1) is subsequently found by a court in a competent jurisdiction (after all available rights of appeal have been exhausted) to have rendered a contract illegal, void, voidable or unenforceable under its governing law; or
- (2) the Exporter or anyone (including any employee) acting (with due authority) on the Exporter's behalf or with its subsequent acquiescence, has, other than under duress, admitted engaging in; or
- (3) is subsequently found by a court in any competent jurisdiction (after all available rights of appeal have been exhausted) outside the United Kingdom to constitute an offence under any applicable law (except by virtue of any changes to that law having retrospective effect); or
- (4) is subsequently found by a court in the United Kingdom (after all available rights of appeal have been exhausted) to constitute a Relevant Offence

and which activity, in respect of paragraphs (1), (2) and (3) above corresponds to a Relevant Offence,

provided that, where, for the purposes of sub-paragraph (2) above, any such activity is admitted by an Excluded Person, such activity shall not, for the purposes of this form, constitute "Corrupt Activity" if such activity was not, at the time it was engaged in, unlawful under the laws and regulations of the country in which it took place;

"Directors" means, in relation to a company, the members of that company's board of directors (including non-executive directors);

"Excluded Person" means, in relation to activity engaged in prior to 1st July 2011, (i) a person other than a national of the United Kingdom (as defined in section 109(4) of the Anti-terrorism, Crime and Security Act 2001) or (ii) a body incorporated under the laws of a country other than the United Kingdom; or, in relation to activity engaged in on or after that date, a person or body of a type not listed in s.12(4) of the Bribery Act 2010;

"Export Contract" means the export contract described in section 2 of this form;

"Exporter" means the company identified in section 1 of this form;



"Exporter's Questionnaire" means the questionnaire submitted by the Exporter to UKEF on the date set out in section 1 of this form;

"Facility Application" means the application for a working capital or bond support guarantee facility submitted by the Exporter and the Bank to UKEF, the date of which is specified in (in relation to the Exporter) section 1 and (in relation to the Exporter) section 16 of this Application;

"Facility Letter" the letter issued by ECGD to the Bank with a copy to the Exporter, in response to the Facility Application;

"Group Company" means a company (in any jurisdiction) which is controlled by the Exporter or which controls the Exporter or which is controlled by a company which controls the Exporter;

"Information Legislation" means the Freedom of Information Act 2000 and the Environmental Information Regulations 2004 as, in each case, amended or re-enacted from time to time and any other legislation from time to time governing the disclosure of information held by public bodies in response to requests from individuals or organisations;

"Involved Group Company" means, in relation to an Export Contract, a Group Company which the Exporter, having made the reasonable enquiries referred to in Section 9.2.4, believes has had, or is intended to have, at the date of this application, any material part in the negotiation or obtaining of that Export Contract;

"Nominated Agent" means, in relation to a Nominated Buyer, any agent which is named in (i) the Schedule to Part A of the Facility Application which relates to that Nominated Buyer and (ii) opposite that Nominated Buyer in Schedule I to the Facility Letter;

"Nominated Buyer" means a buyer identified [] to the Facility Application

"Related Agreement" means:

- (1) any agreement or undertaking, other than any agreement or undertaking for the supply of goods or services to the Exporter or any Consortium Partner, which relates to the Export Contract and to which the Exporter or any Consortium Partner is a party; and/or
- (2) any consent or authorisation, required by the Exporter or any Consortium Partner for the obtaining or performance of the Export Contract and of which the Exporter or any Consortium Partner is the direct recipient or beneficiary;

"Relevant Offence" means, in relation to acts committed or events occurring before 1st July 2011, an offence under the Prevention of Corruption Acts 1889 to 1916 as amended by Part 12 of the Anti-terrorism Crime and Security Act 2001; or, in relation to acts committed or events occurring on or after 1st July 2011, an offence under section 1, 2 or 6 of the Bribery Act 2010 (as from time to time amended or re-enacted);

"Section 7 Offence" means the offence of failing to prevent bribery under s.7 of the Bribery Act 2010;

"Senior Manager" means any employee of the Exporter who has the power to bind the Exporter in relation to the Export Contract;

"Specified Agent" means, in relation the Export Contract, such agent, if any, as is specified in the Facility Letter in respect of the Buyer; and

"UKEF" means the Secretary of State acting by the Export Credits Guarantee Department operating as UK Export Finance.

Representations and Undertakings

9.2 The Exporter represents that:

9.2.1 neither the Exporter nor any of its Directors:

- (1) appears on any list of exporters or individuals debarred from tendering for or participating in any project funded by the World Bank or any other multilateral or bilateral aid agency; or 1
- (2) has at any time during the last five years, admitted (other than under duress) to having engaged, or been found by a court in any competent jurisdiction to have engaged, in any Corrupt Activity that has not previously been notified to UKEF;¹

¹ If the Exporter is unable to make a particular declaration, it should attach to this application a statement to that effect on its headed notepaper, giving full details of the event that occasioned the listing, the admission or the court finding in question.



- 9.2.2 the Exporter has not at any time admitted (other than under duress) to having committed, or been found by a court in the United Kingdom to have committed, a Section 7 Offence that has not previously been notified to UKEF;
- 9.2.3 the information provided, and the representations made, by the Exporter in the Exporter's Questionnaire and the Facility Application remain true and correct;
- 9.2.4 the Exporter has made reasonable enquiries for the purpose of ascertaining whether any Group Companies, at the date on which it signs this application, have had, or, are intended to have, any material part in the negotiation or obtaining of the Export Contract;
- 9.2.5 the Exporter has made reasonable enquiries in relation to any Senior Manager, Agent, Consortium Partner and Involved Group Company in order to ascertain whether any of them (or any Directors of any Consortium Partner or of any Involved Group Company or, if a corporate entity, of any Agent) appears on any list of exporters or individuals debarred from tendering for or participating in any project funded by the World Bank or any other multilateral or bilateral aid agency or has at any time during the last five years (1) admitted to having engaged in, or been convicted of engaging in, any Corrupt Activity or (2) admitted to having committed, or been convicted of committing, a Section 7 Offence;
- 9.2.6 those enquiries have given the Exporter no cause to believe, and the Exporter does not believe, that any Senior Manager, Agent, Consortium Partner or Involved Group Company, or any of the Directors of any Consortium Partner, Involved Group Company or Agent, appears on any list of exporters or individuals debarred from tendering for or participating in any project funded by the World Bank or any other multilateral or bilateral aid agency or has at any time during the last five years (1) admitted (other than under duress) to having engaged, or been found by a court in any competent jurisdiction to have engaged, in any Corrupt Activity or (2) admitted (other than under duress) to having committed, or been found by a court in the United Kingdom to have committed, a Section 7 Offence, which, in each case, has not previously been notified to UKEF; 1
- 9.2.7 neither the Export Contract, nor any arrangement connected with its financing or procurement, has been, or will be, used for the purposes of money laundering (as defined in Part 7 of the Proceeds of Crime Act 2002).
- 9.3 In consideration of ECGD giving the Guarantee, the Exporter undertakes that:
- 9.3.1 the Exporter:
- (1) has not engaged, and will not engage, in any Corrupt Activity in relation to the Export Contract or any Related Agreement;
 - (2) the Exporter has not authorised, and will not authorise, any person to engage in such Corrupt Activity;
 - (3) the Exporter has not consented to or acquiesced in, and will not consent to or acquiesce in, any such Corrupt Activity on the part of any person;
- 9.3.2 the Exporter:
- (1) has required, or, as the case may be, shall require, anyone acting on its behalf (with due authority) who has been, or is, involved in obtaining or performing the Export Contract or any Related Agreement not to engage in any Corrupt Activity (or any activity which, subject to the occurrence of the subsequent events referred to in sub-paragraphs (1), (3) and (4) of the definition of that term in section 7.1 above, would amount to Corrupt Activity) in relation to the Export Contract or any Related Agreement;
 - (2) will monitor compliance with that requirement; and
 - (3) will take appropriate action against anyone found to have engaged in Corrupt Activity;
- 9.3.3 if the Exporter becomes aware that anyone (including any employee of the Exporter) has engaged in Corrupt Activity (or any activity which, subject to the occurrence of the subsequent events referred to in sub-paragraphs (1), (3) and (4) of the definition of that term in section 6.1 above, would amount to Corrupt Activity) in connection with the Export Contract or any Related Agreement, the Exporter shall promptly notify ECGD accordingly and supply ECGD with full details of the Corrupt Activity in question save where such notification would, or might reasonably be argued to, constitute the offence of "tipping off" under section 333A of the Proceeds of Crime Act 2002; and



- 9.3.4 if the Exporter, or anyone (including any employee) acting on the Exporter's behalf (with due authority) or with the Exporter's prior consent or subsequent acquiescence, has engaged, or engages, in any Corrupt Activity in connection with the Export Contract or any Related Agreement, the Exporter will, on demand, pay to ECGD any amounts of any kind which ECGD certifies that it has (1) paid to the Bank pursuant to the Guarantee or (2) incurred by way of interest, costs, expenses and legal fees under, or in connection with, the Bonds, the Guarantee or any other agreement with the Bank following, in each case, the earlier of (a) the date on which the relevant Corrupt Activity occurred and (b) the date with effect from which the Export Contract or, as the case may be, the relevant Related Agreement, became illegal, void or unenforceable under its governing law as a result of that Corrupt Activity;
- 9.3.5 the Exporter shall permit any person authorised by ECGD (and, if other than an official of ECGD, approved by the Exporter, such approval not to be unreasonably withheld or delayed) to visit, during business hours, any of the Exporter's premises in the United Kingdom where Contract Records are kept in order to inspect any Contract Records to the extent necessary to verify the accuracy of any statements made by the Exporter in this form or in section 4, 5 or 7 and section 8 of the Facility Application provided that ECGD gives to the Exporter at least five working days' notice of that visit;
- 9.3.6 the Exporter shall furnish such oral or written explanations of any Contract Records within its knowledge as ECGD's authorised representative or ECGD's personnel (as the case may be) may reasonably require and permit them to take any copies of any of the Contract Records which they may reasonably require upon condition that ECGD will on request pay to the Exporter the cost of supplying any copies of the Contract Records **provided that** information provided to ECGD pursuant to this paragraph 7.3.6 shall be so provided on condition that:
- (1) any Confidential Information will be held by ECGD in confidence on the terms set out in section 9 of the Exporter's Questionnaire;
 - (2) wherever practicable, ECGD will give notice to the Exporter of any application made under the Information Legislation for the disclosure of Confidential Information;
 - (3) (nothing in this paragraph 7.3.6 shall imply that the Exporter considers any Confidential Information to be disclosable under the Information Legislation;
 - (4) to the extent permitted by its obligations at law and its responsibilities as a Government Department, ECGD will destroy Confidential Information, or, if so requested, return it to the Exporter, when ECGD considers that it has served the purpose for which it was obtained; and
 - (5) nothing in this paragraph 7.3.6 obliges the Exporter, or ECGD to act unlawfully or in breach of any requirement of any regulatory or investigatory body or in breach of any duty of confidence.

10 Exporter' certification

- 10.1 The Exporter confirms that it is, or intends to be, the other party to, and the supplier under, the Export Contract;
- 10.2 Where the Exporter has completed section 5 of this form, the Exporter confirms that:
- (1) it is, under the Export Contract, required to procure the issue of the bonds described in section 8 of this form (the "**Bonds**") in favour of the beneficiary named in that section;
 - (2) to satisfy that obligation, it wishes the bank which is named in section 15 of this form (the "**Bank**" to issue, or procure the issue of, the Bonds; and
 - (3) the Bank is willing to do so provided that, among other things, the Bank receives (a) an indemnity from the Exporter in respect of amounts which it may have to pay as a result of a demand being made under the Bond(s) and (b) a guarantee from UKEF in respect of the Exporter' obligations under that indemnity.
- 10.3 Where the Exporter has completed section 6 of this form, the Exporter confirms that:
- (1) for the purpose of performing the Export Contract, the Exporter wishes the Bank to provide it with the working capital facility referred to in section 6 of this form in respect of the Export Contract; and
 - (2) the Bank is willing to do so provided that, among other things, the Bank receives a guarantee from UKEF in respect of the Exporter' obligations to repay that facility on its expiry or termination.



10.4 The Exporter:

- 10.4.1 requests UKEF to provide the above-mentioned guarantee(s) to the Bank;
- 10.4.2 acknowledges that UKEF, when deciding whether or not to issue that Guarantee, will rely on the facts stated, and representations and declarations made by the Exporter, in this form and in the Exporter's Questionnaire and Facility Application;
- 10.4.3 represents to UKEF that:
- (1) that those facts, representations and declarations are, and that information is, true and correct; and
 - (2) the Exporter has neither misrepresented nor omitted any material fact which might have a bearing on UKEF's decision as to whether it should issue the Facility Letter;
- 10.4.4 agrees that for the purposes of this form, the Exporter shall be deemed to have knowledge of any fact or circumstance, if that knowledge is possessed by one or more of its directors or by the person signing this form on its behalf.
- 10.4.5 undertakes to UKEF and the Bank promptly of any changes that may occur in the details shown in this form save where such notification would, or might reasonably be argued to, constitute the offence of "tipping off" under section 333A of the Proceeds of Crime Act 2002.
- 10.4.6 authorises the Bank to provide to UKEF such information as UKEF may from time to time require in connection with the Bonds, the Export Contract or the Export Contract's performance.

Signed for and on behalf of the Exporter by its duly authorised signatory

Signature:	
Name:	
Position:	
Date:	

What next?

- **Print a hard copy of the completed application.**
- **Have it signed on the Exporter's behalf by a duly authorised signatory.**
- **Retain a copy for future reference.**
- **Scan the signed application and send a scanned copy of it to the bank which is to provide the bond facility and/or working capital facility so that the bank can complete the second part of this application and submit the completed application to UKEF and sent to UKEF.**



11 The bank

Bank's Name:	
--------------	--

12 Relevant documents

Date of Master Bond Support Agreement between UKEF and the Bank:	
Date of Exporter Working Capital Scheme Master Guarantee Agreement between UKEF and the Bank:	
Date of Facility Application (as defined in section 9.1 of this form):	
Date of Facility Letter (as defined in section 9.1 of this application):	

13 Information for a bond support to be guaranteed

Complete this section only if you wish UKEF to provide a bond support guarantee

13.1 Details of the Bond(s)

Are the details in section 7 of this Application correct?	☐ Yes ☐ No (Please give corrections details below)
Name of Issuer	
Law governing the bonds	

13.2 Counter-Indemnity arrangements

(a) Name of entity which will give the Bank a counterindemnity	
(b) Has that counter-indemnity been entered into?	☐ Yes (Go to (c) below) ☐ No (Go to 13.3)
(c) Provide date of counter-indemnity agreement	



13.3 Guarantee Details

(a) Does the Bank wish UKEF's guarantee in respect of the Bonds to extend beyond the anticipated expiry date?	☐ Yes (Go to (b) below) ☐ No (Go to (c) below)
(b) If yes, please specify the date on which the Bank wishes UKEF's guarantee in respect of the Bonds to expire	
(c) Percentage of the Maximum Value of the Bonds which the Bank wishes UKEF to guarantee (up to a maximum of 80%)	

13.4 Bonding Fees

The Bank will receive the following fees (excluding advisory fees) in consideration of its issuing, or procuring the issue of, the Bonds:

Corresponding Fee	
Other Fees	
Intervals at which the Corresponding Fee is payable (e.g. quarterly in arrears, quarterly in advance etc)	

13.5 Sub-participants

Does the Bank intend to enter into any Sub Participation Arrangements in respect of the guaranteed Bond?	☐ Yes (Provide details below) ☐ No

14 Information for a working capital guarantee

Complete this section only if you wish UKEF to provide a guarantee for a working capital facility

14.1 Facility Details

Are the details in section 8 above correct:	☐ Yes ☐ No (Give details below)



14.2 Guarantee Details

(a) Does the Bank wish UKEF's guarantee in respect of the facility to extend beyond the anticipated expiry date?	☐ Yes Go to (b) below ☐ No Go to (c) below
(b) If yes, please specify the date on which the Bank wishes UKEF's guarantee in respect of the facility to expire	
(c) Percentage of the Maximum Value of the facility which the Bank wishes UKEF to guarantee (up to a maximum of 80%)	

14.3 Margin, Interest & Fees

The Bank will receive the following fees (excluding advisory fees) in consideration of its providing the Facility:

Credit Margin	
Interest Rate (and basis) (e.g. LIBOR plus Margin)	
Commitment Fee (if any)	
Other fees, if any, to be received by the bank in connection with the provision of the Facility	
Intervals at which the Credit Margin is payable (e.g. quarterly in advance/in arrears etc)	

14.4 Facility Agreement Provisions

Covenants (provide a brief description of terms)	
Events of Default (provide a brief description of terms)	
Other relevant provisions of the Facility, including risk mitigants	



15 Bank's request for a bond support and/or working capital guarantee

- 15.1 Where the bank named in section 11 of this form (the "**Bank**") has completed section 13, the Bank, by signing this form and submitting it to UKEF:
- (1) confirms that it intends to issue, or procure the issue of, the bonds described in section 7 of this form (the "**Bonds**") by signing this form and submitting it to UKEF subject to receiving from UKEF the guarantee mentioned in subparagraph (2) below and receiving from the exporter named in section 1 of this form (the "**Exporter**") an indemnity in respect of any amounts which the Bank may have to pay as a result of a demand on the Bonds;
 - (2) requests UKEF to join with it in entering into an Addendum to the Master Bond Support Agreement between them in order to provide a guarantee to the Bank in respect of the obligations of the Exporter under that indemnity.
- 15.2 Where the Bank has completed section 14, the Bank, by signing this form and submitting it UKEF:
- (1) confirms that, subject to receiving from UKEF the guarantee mentioned in sub-paragraph below, it intends to provide to the Exporter the working capital facility described in section 6 of this form (the "**Facility**"); and
 - (2) requests UKEF to join with the Bank in entering into an Addendum to the Exporter Working Capital Scheme Master Guarantee Agreement between them in order to provide a guarantee to the bank in respect of the obligations of the Exporter to repay that facility on its expiry or earlier termination.
- 15.3 In each case, the Bank also:
- (1) represents that the statements made and information provided in sections 9 to 15 of this form are true and correct; (but makes no representation as to the truth or correctness of any statement made by the Bank in the other sections of this form);
 - (2) acknowledges that UKEF, when deciding whether or not to issue that Guarantee, will rely on the facts stated, and representations and declarations made, by the Bank, in this form and in the Facility Application;
 - (3) acknowledges that UKEF will rely on the statements and information in sections 12 to 15 of this when deciding whether or not to enter into the Addendum referred to in paragraph 15.1(2) and/or (as the case may be) paragraph 15.2(2) above.

Signed for and on behalf of the Bank by its duly authorised signatory:

Signature:	
Name:	
Position:	
Date:	